

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to
the Interstate Transmission System

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Docket No. RM26-4-000

COMMENTS OF NORTHEASTERN REMC

Northeastern Rural Electric Membership Corporation (“NREMC”) respectfully submits these comments in response to the Commission's Notice Inviting Comments on the Advanced Notice of Proposed Rulemaking (“ANOPR”) proposed by the Secretary of Energy on October 23, 2025.

NREMC appreciates the opportunity to comment on the important issues highlighted in the proposed ANOPR and commends the Commission’s efforts to navigate the impacts of large load additions at this critical point in time. It is essential that the integration of large loads occur in a manner that does not discriminate against the size and timing of load showing up on the grid, while also not jeopardizing system reliability.

I. INTRODUCTION AND BACKGROUND

NREMC provides these comments from the perspective of a non-profit, member-owned electric distribution cooperative organized and existing pursuant to the laws of the State of Indiana within the PJM region. NREMC serves a peak load of 350 MW, supplying electric power to more than 35,000 residential, commercial, and industrial member-consumers in northeast Indiana. NREMC supplies power through a significant behind-the-meter generation fleet consisting of

battery energy storage systems, solar, and natural gas facilities, as well as participation in the PJM energy, capacity, and ancillary services markets as a Load Serving Entity (“LSE”).

II. COMMENTS

NREMC appreciates the Secretary’s attention to developing a framework for the timely interconnection of large loads while ensuring grid reliability. The ANOPR asserts that the Commission has jurisdiction over large load interconnections because, like generator interconnections, they are “a critical component of open access transmission service.”¹ The ANOPR argues that similar to exercising its authority to remedy undue discrimination by requiring public utilities to adopt standardized interconnection procedures and agreements for generators, standardized procedures are necessary for large loads, including hybrid facilities, to ensure open and non-discriminatory access to the transmission system.²

Commission jurisdiction over generator interconnections as a component of interstate transmission service does not, by itself, support an inherent grant of jurisdiction over large-load interconnections. Should the Commission determine otherwise and move forward with this rulemaking, it must do so within the express limitations of its statutory authority. Commission jurisdiction cannot override state authority over retail sales, confer any delivery rights under the Open Access Transmission Tariff (“OATT”), or create a federal right to interconnection that would allow large loads to bypass state-established service territories or retail-choice restrictions.

Granting a federal right of interconnection to large loads could enable these loads to obtain de facto retail access to alternative suppliers across the transmission system, even in states

¹ *Advance Notice of Proposed Rulemaking, Ensuring the Timely and Orderly Interconnection of Large Loads*, 9 (27 October 2025).

² *Id.* at 6-8, 12.

that maintain exclusive monopoly service territories and prohibit retail competition. Such an outcome must be avoided as it would effectively “backdoor” retail competition by using federal interconnection rights to circumvent state law. Any large-load interconnection procedures the Commission may move forward with must be structured solely to support wholesale transmission access.

Under these considerations, NREMC provides the following initial comments on some selected principles from the ANOPR:

A. Principle 2 – Large Load Definition

The second principle of ANOPR states that the Commission’s reforms, like its *pro forma* LGIP and LGIA, “should only apply to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW.”³

Establishing a minimum size threshold for which “large load” reforms apply is necessary, but a uniform, nationwide bright-line standard at 20 MW is far too low and would include many manufacturing and industrial loads essential for communities across nation. These types of loads bear little resemblance in scale, behavior, or system impact to the concern driving this proceeding: extraordinarily large, highly concentrated data-center demand measured in the hundreds of megawatts or even gigawatts, at a single point of interconnection. The minimum threshold should more closely reflect these loads of concern and should be set at no less than 100 MW. Smaller or more distributed loads present fundamentally different characteristics and risk profiles. Their electrical demands, operational behavior, and location on the system do not produce the same system-level challenges that hyper-concentrated data-center growth creates.

³ *Id.* at 19.

Applying the same interconnection requirements to these very different categories of load would impose unnecessary barriers on beneficial local development.

B. Principle 3 – Studying load and Hybrid Facilities with Generation

NREMC agrees that, to the extent practicable, studying load and hybrid facilities together with new generating facilities can support more efficient siting decisions and reduce the need for costly network upgrades. Co-locating a large load front-of-meter with newly developed generation, not generation pulled from the existing supply stack, can meaningfully reduce the overall interconnection footprint and limit the transmission reinforcements that would otherwise be required if each facility were studied independently.

All load and generation configurations, including hybrid arrangements, should interconnect on a front-of-the-meter basis, with full transparency regarding both the load and the generating components. Transparent, front-of-the-meter interconnection ensures that transmission providers can accurately study system impacts (including contingency scenarios at the hybrid facilities), appropriately allocate costs, and maintain clear operational visibility. This clarity is essential for maintaining reliability as the system evolves and as new types of load-generation pairings emerge.

C. Principle 7 – Prioritization for Interconnection of Curtailable Large Loads

The principle that “the interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited”⁴ is problematic. Expediting interconnection studies solely for large loads or hybrid facilities that agree to be curtailable and dispatchable would create a discriminatory two-tiered system, favoring certain customers over others based on operational preferences rather than system

⁴ *Id.* at 12.

needs. Data centers often claim “national security” imperatives that prevent curtailment, making such distinctions impractical.

A “fast-track” interconnection process should instead focus on facilities paired with new, front-of-meter generation, where operational flexibility and system benefits can be clearly demonstrated. This approach maintains fairness, supports reliable integration, and avoids preferential treatment that could distort the interconnection queue.

D. Principle 9 – Equal Opportunity for Interconnection Customers

Interconnection customers who are not transmission owners should absolutely be afforded the same or equivalent option to build as generator interconnection customers. Transmission owners should not be permitted to delay or impede the interconnection process if the customer has the capability to construct the necessary facilities themselves. Allowing interconnection customers to exercise this option ensures timely project development, maintains a level playing field, and prevents unnecessary bottlenecks in the interconnection process.

E. Principle 12 – Ancillary Services

NREMC agrees that utilities serving large loads should be responsible for ancillary services based on the gross peak load, without netting against any co-located generation. Even where generation is co-located, the system must still be prepared to serve the full load at any time, maintaining the ability to provide black start, regulation, reactive power, and other essential services. All grid users benefit from having these services available to ensure stability, reliability, and balanced operation, irrespective of whether co-located generation is present or utilized.

Co-location does not reduce the system’s obligations or the risk the load imposes, and charges for ancillary services should reflect the full potential need to deploy these capabilities.

This approach ensures that costs are appropriately aligned with the actual drivers of ancillary service requirements and supports consistent, reliable system operation.

F. Principle 13 – Implementation Plan

Implementation of any proposed reforms must be supported by a well-defined plan and transition framework. The ANOPR appropriately recognizes that any set of reforms adopted in this proceeding will require a defined and coordinated implementation plan that occurs over a reasonable transition period. Any proposed changes will need to be aligned with existing generator-interconnection procedures, transmission-service request processes, and ongoing regional transmission-planning activities. Absent a clear transition framework, transmission providers and customers could face conflicting requirements, duplicative studies, or delays that undermine the very efficiencies these reforms are intended to achieve.

RTOs and ISOs, transmission providers, and load serving entities must have sufficient time to update their procedures, software, staffing, and coordination protocols before any new requirements take effect. Moreover, regional flexibility is necessary to account for differences in queue structures, study methodologies, and the status of current large-load interconnection requests. A well-designed, regionally informed transition plan will be absolutely essential to preserve momentum on active studies and maintain system reliability throughout the transition period.

III. CONCLUSION

NREMC respectfully requests that any Commission action in this proceeding reflect the considerations and recommendations outlined in these comments.

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon each person designated on the official service list compiled by the Secretary in the above captioned dockets.

Dated at Indianapolis, Indiana, this 21st day of November 2025.

/s/ Alexandra L. Jones

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